

In T 2475/17, following a substantial procedural violation (infringement of Art. 113(2) EPC), the board set aside the decision and remitted the case to the department of first instance pursuant to Art. 111(1) EPC and Art. 11 RPBA 2020 for further prosecution. The appellant had requested that the board order that the examining division conduct the examination proceedings in a completely different composition. The board found that the appellant had not convincingly demonstrated that the procedural violations identified had resulted from the examining division's composition. In its view, the appellant's mere assertion that these procedural violations indicated partiality and that there was therefore the risk that the examining division would act in a biased manner when continuing the proceedings could not justify ordering that its composition be changed.

4.3. Personal interest

In T 143/91 the board held that a member of an opposition division was biased if he had a personal interest within the meaning of Art. 24(1) EPC 1973. The mere fact that the member had previously been employed by a company dependent on a party to the opposition proceedings was, however, not sufficient proof of such an interest.

Under Art. 17(3) and (4) of the Service Regulations for permanent and other employees of the EPO (January 2022 version) any permanent employee who, in the performance of his duties, is called upon to decide on a matter in which he has a personal interest such as to impair his independence shall inform the President of the Office (or the President of the Boards of Appeal in the case of members of the boards of appeal).

4.4. Disqualifying partiality

In T 261/88 of 16 February 1993 the board stated that disqualifying partiality presumed that there was a preconceived attitude on the part of a deciding person towards a party to the case. When considering an allegation of partiality (in this case mainly based on the fact that the examiner was a former employee of the opponent), regard must be had to the particular facts of the case (cf. G 5/91). That the examiner's views differed from those held by the party was not disqualifying in itself. The board held that disqualifying partiality was limited to situations where the opinion of a person responsible for taking decisions affecting the right of parties was swayed by his attitude towards a party.

In T 900/02 the board stated that a suspicion of partiality inevitably arose if a member of an opposition division, or any other first-instance body, first solicited and then accepted employment with a firm in which a partner or other employee was conducting a case pending before that member. It stressed that, to be above all suspicion of partiality, every member had to avoid any such situation at any time during the proceedings. No-one could be seen as independent of both parties while in the employ of one of them. The board held that the second examiner's employment by the respondent's representative's firm was both a fundamental deficiency in the first instance proceedings under Art. 10 RPBA 1980 and a substantial procedural violation under R. 67 EPC 1973.

In T.1055/05 the board decided that the examining division's refusal to minute the submissions of a party's representative during oral proceedings did not infringe the right to be heard or constitute grounds for suspecting partiality.

In T.710/15 the opposition division had rejected a new argument under Art. 114(2) EPC, which is only a basis for disregarding new facts or evidence. The board held that such an error of judgment did not prove the partiality of the chairman or the opposition division.

In T.568/17 the board noted that the examiner's communication had contained severe errors of judgment, but that this alone did not justify a suspicion of partiality. With reference to G 1/05 of 7 December 2006 (OJ 2007, 362), the board acknowledged that evidence of actual partiality was not required for an objection of suspected partiality to succeed. However, the suspicion of partiality must be justified on an objective basis which could be verified by the board. A mere allegation of unspecified and undocumented "negative statements" did not suffice.

5. Suspected partiality of members of the boards of appeal

5.1. Grounds for exclusion under Article 24(1) EPC

5.1.1 Previous involvement of a board member as a party's representative in the case in question

In R.16/10 the Enlarged Board held that the meaning of the English text of Art. 24(1) EPC taken as a whole, in its proper context and with respect to the text of the other two languages, was clear. It rejected the petitioner's argument that Art. 24(1) EPC included not only the specific situation where one of the members had represented a party in the case in question but also the general situation where a member had previously acted as representative of that party in any matter. Art. 24(1) EPC related to involvement in the particular case in question and not to any past representation (see also chapter V.B.4.1. "Article 112a(2)(a) EPC – alleged breach of Article 24 EPC").

5.1.2 Participation in the decision under appeal

In T.1028/96 of 15 September 1999 (OJ 2000, 475) the board stated that a member of a board in opposition appeal proceedings who had participated in the decision to grant the patent had not "participated in the decision under appeal" within the meaning of Art. 24(1) EPC. However, in certain special circumstances members of a board in opposition appeal proceedings may be "suspected of partiality" within the meaning of Art. 24(3) EPC if they participated in the decision to grant the patent in suit.

In J.15/04 the Legal Board considered whether it would be appropriate to exclude a member of the board from proceedings whenever he had played any role in a previous case which had any functional coherence with the one under consideration. It noted that if members of a board were to be excluded because that board decided the same legal question in every case in an identical way, any established jurisprudence of a board would lead to exclusion of its members whenever the same legal question was at stake. The

principle of judicial efficiency also constituted an essential element of the right to a fair trial and outweighed any allegation concerning a generally "possible" suspicion of partiality which was not based on the specific facts of the case. By the same token, the principle of a fair trial did not generally exclude a member of the boards of appeal from dealing with a party's case repeatedly, as might happen when a board referred a case back to the first instance and the appeal from the following decision established the competence of the same board. The Legal Board held that any broader interpretation of the wording "participated in the decision under appeal" pursuant to Art. 24(1) EPC had to be based on the occurrence of specific facts of the case to be decided which were sufficient to raise specific concrete doubts on the ability of the member of the board to hear the appeal with an objective judicial mind and which could not be concluded from the mere procedural fact that a member of the board had already been involved in former proceedings with the same party or the same legal question to be decided in the case in hand. The essence of Art. 24(1) EPC 1973 was not to establish an assumption that any former involvement of a member of the board in a case dealing with the interests of a specific party established a suspicion of partiality of that member in all subsequent cases, but to exclude the participation of this member in reviewing a decision which had been dealt with by himself as part of the deciding body. In the case at issue (a divisional application), the Legal Board refused the partiality objection.

In T 1020/06 of 28 November 2008 the board found that there was no provision in the RPBA 2003 or the Business Distribution Scheme (BDS) for a member to be excluded from participation in an appeal case pending before a technical board if that member had already dealt with a similar legal or factual question in another case pending before the same or another technical board. On the contrary, Art. 7 BDS stipulated that, where appeals pending before the board were closely linked the chairman could order that the board decide in the same composition. The board rejected the objections of partiality under Art. 24(3) EPC 1973 against the original board members.

In T 1889/13 of 14 March 2017 the board stated, with reference to J 15/04, that the mere desire for a board which has not encountered any of the relevant factual and legal issues in a related case could not justify an obligation to appoint non-overlapping boards in cases concerning divisional and parent applications in the absence of specific facts which were sufficient to raise specific concrete doubts on the ability of the board members to hear the appeal with an objective judicial mind. Practical considerations and the procedural framework not only give rise to a provision in the business distribution scheme encouraging identical compositions in closely linked cases, but may even require that overlapping or identical board compositions are established in cases which may involve closely linked questions. The board further considered that cases involving grant and opposition appeal proceedings for the same file had to be clearly distinguished from cases involving parent and divisional applications. The conflicts and limitations concerning cases involving grant and opposition appeal proceedings for the same file did not exist with regard to cases involving parent and divisional applications.

5.2. Grounds for exclusion under Article 24(2) EPC: any other reason

In G 1/05 of 7 December 2006 (OJ 2007, 362) the Enlarged Board stated, with reference to R. 28, 2.(a) of the Rules of Court of the European Court of Human Rights and national civil procedure rules, that a close family relationship with a party was one of the classic grounds for legally excluding a judge from taking part in the case concerned. That was not generally so where a family or other close relationship was not with the party but with a representative of the party. If a member of a board of appeal in a notice of withdrawal gives a ground which may by its nature constitute a possible ground for an objection of partiality that ground should normally be respected by the decision on replacement of the board member concerned, because it can be expected that the member submitting the notice knows best whether or not a possible suspicion of partiality could arise (see also J 15/04).

In T 584/09 of 1 March 2013 the board held that the reason the members had given for recusing themselves, namely the avoidance of any appearance of partiality resulting from their having to decide afresh on the same matters, could be an "other reason" within the meaning of Art. 24(2) EPC (see also T 1627/09 of 14 September 2018).

In J 15/04 the Legal Board noted that the notices of self-recusation were based on the situation that the two members concerned did not share the chairman's legal opinion in respect of the occurrence of a possible suspicion of partiality and a presumption that the appellant might therefore doubt their legal integrity. It held that a legal disagreement between the members of a board as such **did not establish any ground for exclusion** or objection under Art. 24 EPC. Each member of a board was responsible for a decision even if he was voted down by the majority of the other members of the board.

5.3. Grounds for objection under Article 24(3) EPC

5.3.1 Expressions of preliminary opinions

In T 241/98 of 22 March 1999 the board of appeal observed that forming an opinion is one of the most important tasks of a board. Issuing a preliminary opinion is to be seen within this context and therefore cannot be regarded as partial (see also in this chapter III.J.6.2.3).

5.3.2 Disqualifying partiality

Members of a board of appeal may be objected to by any party for one of the reasons under Art. 24(1) EPC, or if suspected of partiality (Art. 24(3) EPC). For the grounds for objection under Art. 24(1) EPC, see chapter III.J.5.1. For the "subjective" and "objective" test for partiality, see chapter III.J.1.5.

In T 261/88 of 16 February 1993, the board held that a disqualifying partiality presumed that there was a preconceived attitude on the part of a deciding person towards a party to the case. It was limited to situations where the opinion of a person responsible for taking decisions affecting the right of parties (e.g. a judge) was swayed by his attitude toward a party. Conversely, such a person would not be disqualified for having a certain tendency

or holding a particular view on an issue (see also T 843/91 of 17 March 1993; T 1028/96, OJ 2000, 475).

In T 843/91 of 17 March 1993 the board agreed with the view held in decision T 261/88 that disqualifying partiality presumed a preconceived attitude on the part of a deciding person towards a party. More precisely, in the board's view, partiality would be willingly to favour one party by granting it rights to which it was not entitled, or by intentionally disregarding the rights of the other party (see also T 954/98 of 9 December 1999). The question whether an objection to board members on the ground of suspected partiality was justified could only be decided in the light of the particular circumstances of each individual case (see G 5/91). The board found that, whatever their gravity, deficiencies, erroneous practices or procedural violations could not be regarded as a basis for an objection on the ground of partiality if they did not result from such a preconceived attitude or deliberate intention (see also T 1257/14 of 5 February 2018).

In T 792/12 the appellant contended that the board did not want to listen to his arguments and appeared to lack impartiality because it interrupted him on several occasions. The board rejected this contention and referred to Art. 15(4) RPBA 2007, according to which the chairman of the board presides over the oral proceedings and ensures their fair, orderly and efficient conduct. A chairman may interject in a party's submissions to ensure that the proceedings are efficiently conducted, in particular to avoid a party repeating arguments. In the same way, a chairman, or indeed any member of the board, may interrupt to ask questions which were, for example, considered important for reaching a decision.

5.3.3 Late filed objections under Article 24(3) EPC

In R 2/14 of 17 February 2015 the Enlarged Board of Appeal held that in the event of an objection to a member for suspected partiality pursuant to Art. 24(3) EPC, the statement of grounds of objection must contain the party's complete case in respect of the factual and/or legal circumstances that gave rise to the party's suspicion of partiality. The party may substantiate its initial submissions further during the proceedings. However, since the primary factual (and legal) framework has to be set in the party's initial statement, any subsequent submission must remain within that framework. Submitting new facts and/or legal aspects unrelated to or otherwise distinct from those previously submitted would constitute a new case outside the scope of the objection defined at the outset. In its catchword the Enlarged Board set out that the factual scope of an objection pursuant to Art. 24(3) EPC is defined in the statement of grounds of the objection initiating the interlocutory proceedings under Art. 24(4) EPC. Apart from a subsequent elaboration of said objection by supporting facts, evidence and arguments, the subject-matter of the proceedings, as a rule, cannot be extended or changed, whether by new facts or by a new objection. Accordingly, the Enlarged Board of Appeal did not admit a submission in which the petitioner referred to a new category of objections (personal or "subjective partiality" as opposed to structural or "objective partiality").